Recommendations to the Parliamentary Select Committee on Electoral System Reforms for Provincial Council Elections

Submission by the National Commission on Women

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Introduction

Provincial Councils were established under the 13th Amendment to the Constitution in 1987 as key institutions of devolved governance in Sri Lanka. They were created to strengthen democratic participation, address regional inequalities, and provide greater decision-making powers at the provincial level through the devolution of legislative and executive powers over subjects assigned to the provinces. In the post-war context, Provincial Councils play an important role in promoting reconciliation, inclusive governance, and responsive decision-making, particularly in communities affected by conflict. Despite women's significant contributions as peacebuilders, caregivers, community leaders, and contributors to social and economic recovery, their participation in provincial-level political decision-making remains extremely limited. At the last Provincial Council elections held in 2014, women constituted less than 5% of elected members of Provincial Councils, highlighting persistent structural and institutional barriers to women's entry and advancement in provincial politics.

In response to the continued underrepresentation of women in elected bodies, the Provincial Councils Elections (Amendment) Act, No. 17 of 2017 introduced a mixed electoral system and special measures to increase women's representation in Provincial Councils[1]. These provisions were introduced alongside similar reforms for Local Authorities through the Local Authorities Elections (Amendment) Act, No. 16 of 2017, which established a minimum, mandatory 25% quota for women's representation.

The Local Authority women's quota was first implemented at the Local Government Elections held on 10 February 2018, resulting in the election of nearly 2,000 women and increasing women's representation from less than 2% to 22.8% in local authorities according to the Election Commission[2] of Sri Lanka. The quota has since been implemented through two election cycles, creating an unprecedented cohort of elected women representatives at the local level.

Following the November 2024 General Election, Sri Lanka elected 22 women members to the 225-member Parliament, increasing women's representation to 9.7%[3]. While this represents the highest level of women's representation in Parliament and an improvement from approximately 5.3% in 2020, it remains significantly below regional and global averages. Sri Lanka's ranking

[1] Provincial Councils (Amendment) Act No. 17 of 2017. Available online.
[2] See Election Commission on Sri Lanka website for more details.
[3] Ibid

in the Inter-Parliamentary Union (IPU) global ranking improved from 179th place after the 2020 election to 165th place following the 2024 election.

However, the provisions introduced through the Provincial Councils Elections (Amendment) Act, No. 17 of 2017 have not yet been tested in practice, as Provincial Council elections have not been held since the amendments were enacted. The forthcoming Provincial Council elections therefore provide a critical opportunity to review, strengthen, and operationalize these provisions, drawing on lessons from the implementation of the Local Authority women's quota.

Rationale

Women's meaningful inclusion in Provincial Councils is essential not only for advancing gender equality but also for strengthening sustainable peace, reconciliation, and effective devolved governance. Sri Lanka's National Action Plan on Women, Peace and Security (2023–2027), developed in line with United Nations Security Council Resolution 1325, recognizes that the full, equal, and meaningful participation of women in political and decision-making processes is critical for building inclusive and resilient societies, particularly in post-war contexts. Increasing women's representation in Provincial Councils will contribute to more diverse perspectives in policymaking, strengthen community-responsive governance, and advance Sri Lanka's commitments under the Women, Peace and Security agenda.

Further, the experience of implementing the Local Authority women's quota demonstrates that while quotas are essential to increasing women's numerical representation, they must be accompanied by broader institutional and legal reforms to ensure meaningful participation. Women elected through the quota system continue to face challenges, including limited access to leadership and decision-making positions, inadequate institutional support, resource constraints, and unsafe or discriminatory political environments. These lessons must inform the design and implementation of women's representation mechanisms at the Provincial Council level.

The experience gained through the Local Authority women's quota demonstrates that Sri Lanka now has a valuable pool of experienced women representatives who should have opportunities for upward political mobility and greater participation in provincial and national decision-making. The Provincial Council electoral framework should therefore establish pathways for women local representatives to contest and secure election at the provincial level.

Under Section 13 of the Provincial Councils (Amendment) Act, every political party or independent group is required to ensure that women constitute not less than one-sixth of candidates nominated under the Electorate List and not less than 50% of candidates nominated under the District List. Further, Section 58A (8) requires that at least 25% of members elected and returned from each administrative district within a Province should be women[4]. However, Section 58B (4) provides that a Provincial Council shall not be considered invalid solely due to

[4] Provincial Councils (Amendment) Act No. 17 of 2017. Available online

failure to meet these women's representation requirements, and the Act provides certain exceptions to the quota requirements.

Given these limitations, the National Commission on Women (NCW) recognizes the need to strengthen the existing framework to ensure that women's representation is not merely aspirational but results in meaningful participation in provincial governance. The NCW therefore proposes that every Provincial Council should achieve at least one-third representation of women, ensuring balanced, inclusive, and effective decision-making at the provincial level.

A. Recommendations if the 2017 Provincial Council Elections (Amendment) Act is implemented

Based on the experience of the Local Authority women's quota system, the National Commission on Women recommends strengthening the existing provisions as follows:

1. Increasing women's representation in the first list

Under the current dual nomination system, the minimum requirement for women candidates in the First-Past-the-Post (FPP) component should be increased from 10% to 20%. This would increase women's direct representation through the FPP component from approximately 6% to 12%of total council seats, creating greater opportunities for women to contest and be elected.

Therefore, the Provincial Councils Elections Act, No. 2 of 1988, as amended by Act No. 17 of 2017, should be further amended, including Sections 13, 17, 58A (8), and 58B, to increase the women's representation requirement from 25% to at least one-third (33%) and to ensure effective implementation of this quota in Provincial Councils.

2. Introducing a Zebra List / Zipper System for the second list

The current requirement of 50% women's representation in the second list should be strengthened by introducing a "Zebra List" or "Zipper System", where male and female candidates are placed alternately on the list. Countries such as Sweden, Norway, Spain, Mexico, Bolivia and France have adopted similar approaches to ensure that women are placed in winnable positions and not only included at the bottom of candidate lists.

To further strengthen representation, the first candidate on the list should be a woman to ensure women have a fair opportunity to obtain seats.

3. Allocating overhang seats equally

Where additional seats are created due to an overhang situation, 50% of such seats should be allocated to women to ensure that these additional opportunities also contribute to gender-balanced representation.

B: Recommendations if the Committee decides to return to the 1988 Provincial Council Elections Act

If the Committee decides to return to the Provincial Councils Elections Act, No. 2 of 1988, elections would be conducted under a pure Proportional Representation (PR) system with multi-member electoral districts.

All Provincial Council elections held between 1988 and 2014 were conducted under this PR system. However, this system did not include any statutory requirement or quota to ensure women's representation. As a result, women remained significantly underrepresented in Provincial Councils.

Therefore, if a PR system is retained, special measures must be introduced to guarantee women's meaningful participation.

International examples of increasing women's political representation under PR system

Many countries, particularly in the Global South, have introduced electoral reforms and quota mechanisms to increase women's representation in legislative bodies.

Lesotho has introduced a legislated "zebra list" system under which political parties must alternate male and female candidates on their proportional representation lists. This ensures that women are not only included as candidates but are also placed in positions where they have a realistic chance of being elected[5].

Argentina was one of the first countries to introduce legislated gender quotas through the *Ley de Cupos* (1991), which required political parties to nominate at least 30% women candidates. Building on this, the Gender Parity Law (2017) replaced the quota with a 50:50 gender parity requirement, mandating that party lists alternate women and men in a "zipper" sequence[6]. This prevents women from being placed in unwinnable positions and ensures equal opportunities for election. Should Sri Lanka retain ~~s~~ a Proportional Representation (PR) system for Provincial Council elections, a similar parity requirement with mandatory alternating placement of women and men on party lists could provide an effective mechanism for substantially increasing women's representation.

[5]https://www.eisa.org/document/2021-journal-of-african-elections-v20n2-womens-representation-lesothos-legislative-bodies-politico-legal-analysis-effectiveness-electoral-gender-quotas-eisa/

[6] https://aceproject.org/ero-en/topics/parties-and-candidates/Dahlerup.pdf

Spain and **Belgium** have adopted stronger parity measures by requiring political parties to maintain gender balance on candidate lists, generally requiring between 40% and 50% representation of each gender. Through the zipper system, women and men are placed alternately on candidate lists, preventing women from being placed only in less competitive positions.

South Africa has demonstrated the importance of party commitments. Although it does not have a legally mandated gender quota for national elections, political parties such as the African National Congress (ANC) have adopted voluntary 50% gender quotas in candidate selection, contributing significantly to women's representation in Parliament.

These examples demonstrate that legal quotas, candidate placement requirements, and political party commitments are effective tools to increase women's participation when combined with an electoral system that supports inclusive representation.

Based on international experiences from the global south, the National Commission on Women, recommends the following as being the most suitable for a Sri Lankan context:

1. **Minimum women's nomination requirement to be 33%**

Political parties should be required to nominate at least one-third (33%) women candidates as an immediate minimum standard, with a long-term goal of achieving gender parity.

2. **Mandatory gender-balanced candidate lists (50:50)**

Political parties should be required to nominate women and men equally through a Zebra List / Zipper System, ensuring that women are placed in electable positions rather than merely included as candidates.

Based on the global examples referred to in Annexure 1, Argentina's experience demonstrates the evolution from minimum candidate quotas to legislated gender parity through mandatory alternating placement of women and men on party lists (Zebra List). This provides a stronger precedent than simple quota systems by ensuring women are nominated in electable positions.

There are ongoing discussions on introducing a youth quota in Provincial Council elections. If adopted, at least 50% of that quota should be reserved for young women. This should be an additional measure that complements, not replaces or reduces, the primary demand for one-third women's representation. Such an approach would address the multiple barriers faced by young women, strengthen intergenerational women's leadership, and increase women's overall representation in Provincial Councils[7].

C. Alternative Model: Women-Only Reserved Electorates for Provincial Councils

[7] https://midpoint.lk/nmsj-proposes-three-options-to-enable-early-provincial-council-elections/

Sri Lanka may also consider introducing a temporary women-only electorate system for Provincial Council elections, drawing from India's experience[8] with reserved wards in local government.

Under this model:

- **One-third of Provincial Council electorates could be temporarily reserved exclusively for women candidates**.

- **Only women candidates would be eligible to contest from these reserved electorates.**

- **The reserved electorates would rotate between elections to ensure equal opportunities for women across different areas and provinces.**

This approach would ensure that at least one-third of Provincial Council members are women while maintaining the principle of direct elections.

A similar approach was recommended by the Presidential Commission of Inquiry on the amendment of the Election Laws in October 2023, which proposed temporary reserved constituencies for women in larger electoral districts, with rotation between elections. There is a valid argument that this may weaken incentives for women representatives to build long-term constituencies and incumbency, however it could be mitigated by adopting longer rotation cycles or rotating reserved constituencies only after two consecutive terms. As a temporary special measure to accelerate women's equal political participation, such a model would be consistent with Article 12(4) of the Constitution of Sri Lanka, which permits special provisions for the advancement of women, as well as Article 4(1) of the UN CEDAW Convention.

The National Commission on Women emphasizes that increasing women's representation is not merely a matter of achieving numerical targets, but of ensuring women's full, equal and meaningful participation in political decision-making. The forthcoming Provincial Council elections provide a critical opportunity to build on the progress achieved through the Local Authority women's quota system and to establish a sustainable pathway for women's political leadership at provincial and national levels of governance. With this objective in mind, the Commission's reform proposals are submitted for consideration, with a view to transforming women's representation from a statutory requirement into effective and equal participation in governance, in line with Sri Lanka's constitutional commitments and international obligations.

[8] https://newsonair.gov.in/nari-shakti-vandan-adhiniyam-comes-into-force-ensuring-one-third-reservation-for-women/